

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

WP No.10317 of 2015

Amtal Sabour
versus
Deputy Director (E.M.) PHATA region, Multan etc

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
	08.06.2017	Mr. Aurangzaib Ghuman, Advocate for petitioner. Mr. Muhammad Javaid Saeed Pirzada, AAG with Masood Ahmad, Management Officer.

Through this constitutional petition, the petitioner has sought a direction to the respondents to allot joint land/plots to the petitioner and proforma respondents according to their shares in their mother's inheritance on the basis of the land belonging to their mother measuring 03-kanals 06-marlas acquired by the respondents which may be divided between the petitioner and proforma respondents according to their shares.

2. The brief facts of the case are that the mother of the petitioner and proforma respondents, namely, Naziran Bibi was allottee of the land measuring 03-kanals 06-marlas at Chak No. 447/EB, which was acquired by the respondents for Area Development Scheme No.II, Burewala in the year 1983. The mother of the petitioner died in the year 1998 and inheritance mutation was entered in the name of the petitioner and proforma respondents and their father according to their shares. The father of the petitioner died later on and his share in property was inherited by the petitioner and proforma

respondents. The petitioner claims to be entitled to be allotted exempted/adjusted land that is available as against 03-kanals 06-marlas but the respondents are not providing the same to the petitioner and the proforma respondents on the pretext that each of the legal heir is to be treated separately and share of none of the legal heir is enough for allotment of exempted plot in the scheme developed by the respondents wherein plots of one kanal, 10 marlas, 07 marlas and 05 marlas have been carved out of the land, therefore, they are entitled to compensation only.

3. In the comments, it is admitted that property of petitioner's mother was acquired. The Chief Minister, Punjab approved summary on 27.08.2007 whereby ex-land owners are entitled to exemption/adjustment equal to 30% on the basis of their entitlement reflected in the revenue record and as per revenue record, each individual is being treated separately, hence entitled to compensation only.

4. Learned counsel for the petitioner has argued that the date on which land was acquired, the mother of the petitioner was alive and had to be treated as a single individual from whom 03-kanals 06-marlas land was acquired and on the basis of same acquisition, mother of the petitioner was entitled to exemption/adjustment, therefore, same be allowed to her legal heirs.

5. It is seen from the record that Area Development Scheme, Burewala-II, comprising an area of 99-Acre, 01-kanal and 16-marlas which included 61-Acres, 01-kanal and 12-marlas of private land owners and Dakheels Karaans was launched by Housing & Physical Planning

Department in the year 1984. The possession of scheme was taken over on 29.10.1984. The scheme was completed in few years by incurring expenditure of Rs.50.293 million. The award of private land was accordingly announced by the Land Acquisition Collector, H&PP Circle, Multan (defunct) at the rate of Rs.1,32,000/- per Acre plus 15% compulsory acquisition charges on 29.02.2000. Being aggrieved of it, the ex-land owners had not accepted the above award and approached the Chief Minister, Punjab for redress of their grievance. The case was examined in order to resolve the deadlock, and a summary was approved by the Chief Minister Punjab for redress of grievance of land owners featuring that the compensation of land at the rate of Rs.1,32,000 per acre plus 15% acquisition compulsory charges and 30% exemption of land in shape of developed plots after recovering the development charges at the rate of Rs.7972/- per marla. As per direction of the Chief Minister, Punjab issued in the above said summary, the land owners exemption/adjustment committee in its meeting held on 03.04.2015 has allocated the plots for allotment to be ex-land owners of Area Development Scheme No.II at Burewala as per their entitlement/mutations submitted by them and were verified by the concerned revenue staff.

6. The Chief Minister, Punjab approved the summary by observing therein that for the purpose developed plots equivalent to 30% of the land holding may be sold/exempted to them at this stage under the enabling provision of the law on recovery of development charges of Rs. 7972/- per marla. This

proposal, it was observed, would be a just dispensation for the land owners but would require compassionate interpretation of Section 4(g) of the Disposal of Land by Development Authorities (Regulation) Act, 1998, which is reproduced below:

“4(g) Notwithstanding anything contained in this Section Government may allow sale and disposal of land in special circumstances at such rate and on such terms and conditions as it may determine.”

7. Admittedly, at the time of acquisition of the property, mother of the petitioner was alive so she has to be treated as a single individual from whom the property was acquired. She died in the year 1998, i.e. 14 years after possession of the land for the scheme was taken over. After the death of the petitioner's mother, the land was mutated in favour of her legal heirs but the said heirs cannot be treated as separate individuals as the entitlement of their mother had matured on the acquisition and taking over possession by the respondents.

8. The representative of the respondent department was asked whether any plots are available in the said scheme, he has stated that some plots are still available.

9. In this view of the matter, all the legal heirs of Naziran Bibi shall be treated as her representatives and thereafter the case of the petitioner and proforma respondents shall be processed by respondent No.1 keeping in view the policy allowing exemption/adjustment to the legal heirs of Naziran Bibi and the legal heirs will jointly be allotted plots to which Naziran Bibi would have been entitled had she been alive.

10. For what has been discussed above, this petition is ***allowed*** in the aforesaid terms.

*Naveed**

(Muzamil Akhtar Shabir)
Judge